

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF THE BRONX

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LESTER DAVIS and REINALDO ROSADO;

INDEX No.

Date Index No. Purchased:

Plaintiff(s),

SUMMONS

- against -

THE CITY OF NEW YORK, PO ALBADYS
REYES (BADGE NO. 459); MEMBER
OF SERVICE WITH TAX ID 935582;
DET. LEE ARROYO, (BADGE NO. 11775),
DET. JOSEPH IERNA, (BADGE NO. 8613);
JOHN DOE SERGEANT 1, and NYPD OFFICERS
JOHN DOES 1-3,

The basis of venue is the
locus of the events in the
Complaint

Defendant(s)

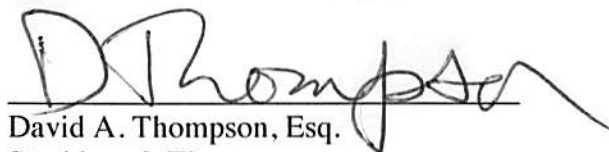
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To the Person(s) Named as Defendant(s) Above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer
the complaint of the plaintiff(s) herein and to serve a copy of your answer on the
plaintiff(s) at the address indicated below within 20 days after the service of this
Summons (not counting the day of service itself), or within 30 days after service is
complete if the Summons is not delivered personally to you within the State of New
York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, a judgment
will be entered against you by default for the relief demanded in the complaint.

DATED: NEW YORK, N.Y.
October 12, 2017



David A. Thompson, Esq.
Stecklow & Thompson
Attorneys for Plaintiff(s)
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New York, NY 10013
Phone: (212) 566-8000
Fax: (888) 566-7999

Defendants' Address: 100 Church Street
New York NY 10007

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF THE BRONX-----X
LESTER DAVIS and REINALDO ROSADO;

INDEX No.

Date Index No. Purchased:

Plaintiff(s),

VERIFIED COMPLAINT

- against -

Attorney Verification

THE CITY OF NEW YORK, PO ALBADYS
REYES (BADGE NO. 459); MEMBER
OF SERVICE WITH TAX ID 935582;
DET. LEE ARROYO, (BADGE NO. 11775),
DET. JOSEPH IERNA, (BADGE NO. 8613);
JOHN DOE SERGEANT 1, and NYPD OFFICERS
JOHN DOES 1-3,The basis of venue is the
locus of the events in the
Complaint*Defendant(s)*

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Plaintiffs LESTER DAVIS and REINALDO ROSADO by their attorneys, STECKLOW
& THOMPSON, complaining of the defendants, respectfully allege as follows:I. VENUE AND JURISDICTION

1. Venue is proper for the Bronx County Supreme Court of the City of New York pursuant to CPLR § 503 as the incident described herein occurred in Bronx County, New York.

2. Venue is proper for the Bronx County Supreme Court as the plaintiffs suffered damages that exceed the jurisdictional amount of all lower courts of the state of New York.

3. The plaintiffs have complied with N.Y. General Municipal Law §50-E by serving a notice of claim upon the defendants. More than 30 days have elapsed since said claim was presented and the claim has not been satisfied.

II. JURY DEMAND

4. The plaintiffs respectfully demand a trial by jury of all issues in this matter.

III. THE PARTIES

5. At all relevant times, Plaintiff LESTER DAVIS was a resident of the State of New York.

6. At all relevant times, Plaintiff REINALDO ROSADO was a resident of the State of New York.

7. Defendant THE CITY OF NEW YORK is a municipal existing by virtue of the laws of the State of New York.

8. Defendant THE CITY OF NEW YORK maintains the New York City Police Department ("NYPD"), acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

9. At all relevant times, PO ALBADYS REYES (BADGE NO. 459) was a police officer of the NYPD and was acting under the supervision of said department and according to his/her official duties.

10. At all relevant times, MEMBER OF SERVICE WITH TAX ID 935582 was a police officer of the NYPD and was acting under the supervision of said department and according to his/her official duties.

11. At all relevant times, DET. LEE ARROYO (BADGE NO. 11775) was a police officer of the NYPD and was acting under the supervision of said department and according to his/her official duties.

12. At all relevant times, DET. JOSEPH IERNA, (BADGE NO. 8613) was a police officer of the NYPD and was acting under the supervision of said department and according to his/her official duties.

13. At all relevant times, JOHN DOE SERGEANT 1 was a police officer of the NYPD and was acting under the supervision of said department and according to his/her official duties.

14. At all relevant times, JOHN DOES 1-3 were police officers of the NYPD and were acting under the supervision of said department and according to his/her official duties.

15. Each and all of the acts, all of the defendant NYPD police officers (collectively, the "INDIVIDUAL DEFENDANTS") alleged herein were done by the INDIVIDUAL DEFENDANTS while they were acting within the scope and in furtherance of their employment with the defendant, THE CITY OF NEW YORK.

IV. FACTS COMMON TO ALL CLAIMS

16. On August 20, 2016, at approximately 3:45 PM, Mr. Lester Davis was near the corner of Davidson Avenue and 183rd Street in the Bronx, New York.

17. Mr. Davis was at a temporary shrine for a friend named Rudy who had been killed in a fire.

18. Mr. Davis was waiting for the victim's sister, who was collecting funds to pay for a funeral.

19. Reinaldo Rosado, another friend of Rudy's, was also paying respects to Rudy at the shrine.

20. Approximately 50 feet away, another individual was standing on the sidewalk. Upon information and belief, this individual's name was Dwayne Warren.

21. Narcotics officers in plain clothes pulled up near where Mr. Warren was standing. They placed him under arrest.

22. One plain clothes officer began to examine the ground along the sidewalk, including the area near where Mr. Davis was located.

23. Another officer, JOHN DOE SERGEANT 1, instructed the officer to pat down Mr. Davis. This officer patted down Mr. Davis, finding no weapons, no contraband, or any reason to search further.

24. However, one of the officers asked Mr. Davis, in sum and substance, "What happened to the other guy?"

25. Mr. Davis did not know who they were talking about, and said so.

26. JOHN DOE SERGEANT 1 then instructed the officer who had patted Mr. Davis down, in sum and substance, "Take them all in."

27. The officer handcuffed Mr. Davis and placed him under arrest.

28. Mr. Rosado was arrested at the same time.

29. Upon information and belief, the officers responsible were JOHN DOE SERGEANT 1, PO Aradys Reyes, Shield No. 459, Det Lee Arroyo, Shield No. 11775, Det. Joseph Ierna, Shield Number 8613, and unknown other police officers including JOHN DOES 1-3, some of whom may have been undercover. Each of these officers worked together to arrest and detain the Plaintiffs, Mr. Davis and Mr. Rosado.

30. The Plaintiffs were placed in an unmarked van.

31. The van went to the 46th Precinct.

32. The Plaintiffs were held at the precinct approximately 3-4 hours.

33. The Plaintiffs were then taken to Central Booking at 161st Street.

34. Mr. Davis was not provided access to an attorney until approximately 24 hours later. However, those responsible refused to arraign Mr. Davis until attorneys for all three individuals arrested were present and ready. Mr. Davis was held an additional 24 hours after this attorney first met with him.

35. PO Reyes submitted sworn criminal complaints falsely alleging that the Plaintiffs have been involved in drug transactions.

36. The complaint against Mr. Davis also falsely stated that Mr. Davis had been in possession of a piece of a pill of unknown substance.

37. The complaint falsely stated that the Plaintiffs and Mr. Warren were acting in concert in a drug transaction.

38. PO Reyes attributed some of the false allegations he placed in this complaint to other officers, including Det Lee Arroyo, Shield No. 11775, Det. Joseph Ierna, Shield Number 8613, and unknown other police officers, some of whom may have been undercover.

39. Each and all of these officers knew that the allegations made against the Plaintiffs were false, and knew that making these false allegations would likely result in false charges being brought against the Plaintiffs at arraignment. Nevertheless, the officers made these false charges in order to justify the arrest of the Plaintiffs.

40. While in custody at Central Booking, Mr. Davis began suffering from flu symptoms. He asked for medical attention, but it was denied him.

41. At arraignment, Mr. Davis was released without bail. At the first appearance, the charges against Mr. Davis were dismissed for total lack of evidence.

42. At arraignment, Mr. Rosado was held in custody. At the first appearance, the charges against Mr. Rosado were dismissed for total lack of evidence.

V. CAUSES OF ACTION

COUNT 1

**Unlawful Arrest Pursuant to Title 42 U.S.C. § 1983
Against the Individual Defendants**

43. The plaintiffs repeat and reallege the allegations set forth elsewhere herein.
44. The plaintiffs were arrested without a warrant and without probable cause.
45. The plaintiffs were held in custody without justification.
46. As a result of the foregoing wrongful conduct, the plaintiffs suffered loss of liberty, physical pain and discomfort, and emotional distress.
47. The plaintiffs demand compensatory damages, punitive damages, attorneys fees and costs.

COUNT 2

**Deprivation of the Right to a Fair Trial Pursuant to Title 42 U.S.C. § 1983
Against the Individual Defendants**

48. The plaintiffs repeat and reallege the allegations set forth elsewhere herein.
49. The Individual Defendants deprived the plaintiffs of their right to a fair trial by providing false evidence to the prosecution of their criminal complaints.
50. As a result of the foregoing wrongful conduct, the plaintiffs suffered loss of liberty, physical pain and discomfort, and emotional distress.
51. The plaintiffs demand compensatory damages, punitive damages, attorneys fees and costs.

COUNT 3**Malicious Prosecution Pursuant to Title 42 U.S.C. § 1983
Against the Individual Defendants**

52. The plaintiffs repeat and reallege the allegations set forth elsewhere herein.
53. The Individual Defendants maliciously prosecuted the plaintiffs.
54. As a result of the foregoing wrongful conduct, the plaintiffs suffered loss of liberty, physical pain and discomfort, and emotional distress.
55. The plaintiffs demand compensatory damages, punitive damages, attorneys fees and costs.

COUNT 4**False Arrest Under New York State Law
Against All Defendants**

56. The plaintiffs repeat and reallege the allegations set forth elsewhere herein.
57. The plaintiffs were arrested without a warrant and without probable cause.
58. The plaintiffs were held in custody without justification.
59. As a result of the foregoing wrongful conduct, the plaintiffs suffered loss of liberty, physical pain and discomfort, and emotional distress.

COUNT 5**Mailicious Prosecution Under New York State Law
Against All Defendants**

60. The plaintiffs repeat and reallege the allegations set forth elsewhere herein.
61. The plaintiffs were prosecuted without probable cause.
62. As a result of the foregoing wrongful conduct, the plaintiffs suffered loss of liberty, physical pain and discomfort, and emotional distress.

COUNT 6
(Respondent Superior)
Against THE CITY OF NEW YORK

63. The plaintiffs repeat and reallege the allegations set forth elsewhere herein.

64. Defendant THE CITY OF NEW YORK was the employer of all of the INDIVIDUAL DEFENDANTS.

65. At the time of the incident, all of the INDIVIDUAL DEFENDANTS were acting in the scope of their employment with THE CITY OF NEW YORK

66. During the commission of the incident in question, all of the INDIVIDUAL DEFENDANTS were working in furtherance of their employment with CITY OF NEW YORK.

67. The plaintiff is entitled to compensatory damages from THE CITY OF NEW YORK in an amount to be determined at trial, together with attorneys' fees and costs.

WHEREFORE it is respectfully requested that the Court:

[a] Award appropriate compensatory and punitive damages.

[b] Empanel a jury.

[c] Award attorney's fees and costs.

[d] Award such other and further relief as the Court deems to be proper and in the interest of justice.

DATED: New York, New York
October 12, 2017

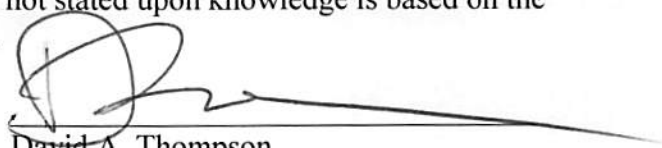
A handwritten signature in black ink, appearing to read "D Thompson", is written over a horizontal line.

DAVID A. THOMPSON
STECKLOW & THOMPSON
ATTORNEYS FOR PLAINTIFFS
217 Centre Street, 6th Floor
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Fax: (888) 566-7999
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ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney admitted to practice in the Courts of New York State, and I have read the annexed Complaint and know the contents thereof, and the same is true to my knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason I make this verification and not plaintiffs is because the plaintiffs do not reside in the county where the undersigned attorney has his office.

My belief as to those matters therein not stated upon knowledge is based on the following: information contained in my file.


David A. Thompson

Sworn to before me this
12th day of October 2017



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